

CORRESPONDENCE · 5 MAY 1997

Letter lawyer → McDonald's

TYPE	DATE	PARTIES
Correspondence	5 May 1997	From Bernard Collorafi's counsel (Maître Clément)

SUMMARY SHEET

Letter from counsel to McDonald's — Maître Clément · 5 May 1997

Overview: letter sent by Maître Jean-Paul Clément, counsel for Mr Bernard Collorafi and SEBOL, to the management of McDonald's France (Mr Denis Hennequin), in reply to a letter from the company and following up his own letter of 12 March 1997.

Key points

Counsel expresses surprise at a lack of courtesy and recalls that contracts must be performed according to their spirit and not only their letter. On the “alleged discrimination”, he criticises McDonald's for not responding to his client's arguments: the establishment of a restaurant in Vallauris would cut into the primary and secondary catchment areas of Mr Collorafi's two restaurants. He argues that McDonald's alone decides on locations, compels certain franchisees to open new restaurants so as not to see their market share reduced, then allocates to the neighbour sites that harm the first. He invokes the forecast operating accounts provided to franchisees and the statements made at motivational meetings. Mr Collorafi maintains his position and reserves all rights regarding the damage caused.

Significance

Pre-litigation correspondence: it formalises, before the legal action, the franchisees' grievances concerning the openings in close succession and the encroachment on their catchment area.

Sheet generated automatically from the transcription of the document.

Source: bernardcollorafi.org/en/documents/letter-counsel-clement-mcdonalds-vallauris-catchment-area-1997/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.